



SPONSOR: Sen. Brown & Sen. Pinkney & Sen. Wilson &
Rep. Bolden
Sens. Buckson, Hansen, Huxtable, Pettyjohn, Poore,
Walsh; Reps. Heffernan, Yearick

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 31

AN ACT TO AMEND TITLE 29 OF THE DELAWARE CODE RELATING TO RETIRED STATE EMPLOYEE
PENSION PLAN BURIAL BENEFITS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 5546, Title 29 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 5546. Burial benefits.

4 (a) ~~Upon~~On the death of an individual receiving a pension under this chapter the sum of ~~\$7,000~~\$10,000
5 must be paid from the Fund to a designated beneficiary ~~or~~or, in the absence of a designated ~~beneficiary~~beneficiary, the
6 amount of this benefit ~~shall~~must be paid to the deceased pensioner's estate.

7 Section 2. This Act takes effect on October 1, 2025.

SYNOPSIS

Section 1 of this Act increases the burial benefit for individuals receiving a pension under the State Employees' Pension Plan (Chapter 55 of Title 29 of the Delaware Code) from \$7,000 to \$10,000. The amount of this benefit has not been increased since 2001 (See 73 Del. Laws, c. 146, § 5).

Section 1 of this Act directly increases the amount of the burial benefit for individuals receiving a pension under the State Employees' Pension Plan and also increases the funeral benefits under additional pension plans because the amount of the benefits under the following pension plans is the same as the amount under § 5546 of Title 29:

- The State Police Pension Plan, Chapter 83 of Title 11.
- The Delaware County and Municipal Police and Firefighter Pension Plan, Chapter 88 of Title 11.
- The early retirement option for state employees, Chapter 53 of Title 29.

In addition, Section 1 of this Act increases the reasonable funeral expenses permitted in a wrongful death action under § 3724(d)(4) of Title 10 because the maximum for these damages is the amount under § 5546 of Title 29.

Section 2 of this Act delays the effect of this Act until October 1, 2025, to provide time to implement this Act after the enactment of the fiscal year 2026 appropriations act containing the funding for this Act.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.

Author: Senator Brown